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Case Number: 25STCV27986 Hearing Date: August 31, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion for Attorney

Fees — with Motion to Strike Costs

Plaintiff's Motion for Attorney Fees, Costs, and Expenses is granted in the reduced amount of \$15,648.00 in attorney fees. Defendant's Motion to Strike Costs is granted in part and denied in part, and costs are awarded in the reduced amount of \$1,313.82.

BACKGROUND

Plaintiff Said J. Naber (Plaintiff) filed this action against Toyota Motor Sales, U.S.A., Inc. (Defendant). Plaintiff alleges that he purchased a 2022 Toyota Mirai after Defendant misrepresented the vehicle's fuel efficiency and quality, and that the vehicle's fuel cell components then failed to conform to the warranties covering them.

The causes of action are: (1) Violation of the Consumers Legal Remedies Act; (2) Breach of Express Warranty; (3) Breach of Implied Warranty of Merchantability; and (4) Breach of Implied Warranty of Fitness for a Particular Purpose.

Plaintiff filed a Motion for Attorney Fees, Costs, and Expenses, and Defendant filed an Opposition. Defendant filed a Motion to Strike Costs, and Plaintiff filed an Opposition.

The parties settled the action before either motion was filed. Defendant agreed to pay Plaintiff restitution, and the parties left attorney fees and costs to the Court to fix on noticed motion.

REQUEST FOR JUDICIAL NOTICE

Plaintiff requests judicial notice of three minute orders entered in other consumer warranty actions. (RJN, at pp. 2-3.) The request is granted. (Evid. Code, § 452, subd. (d).) The Court notices the existence of each order and the rulings it made, and does not treat the factual recitations within the orders as established. The orders are lettered A through C, while the Motion and the Reply describe four orders and cite them as Exhibits 1 through 4. (Mot., at p. 9:15; Reply, at p. 4:24-27.)

LEGAL STANDARD

The Consumers Legal Remedies Act provides that the court “shall award court costs and attorney’s fees to a prevailing plaintiff in litigation filed pursuant to this section.” (Civ. Code, § 1780, subd. (e).) The Song-Beverly Consumer Warranty Act provides that a prevailing buyer “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).)

The party seeking fees “bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.” (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1320.) A prevailing buyer must show that the fees incurred were “allowable,” were “reasonably necessary to the conduct of the litigation,” and were “reasonable in amount.” (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104-105.)

The inquiry begins “with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1094-1095.) “The reasonable hourly rate is that prevailing in the community for similar work.” (Id. at p. 1095.) “The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (Ibid.)

ANALYSIS

I. Entitlement

Defendant challenges the amount of the request and asks the Court to award a reduced sum. (Opp., at p. 1:4-7.) The settlement agreement provides that Plaintiff may petition the Court for “reasonably and actually incurred” attorney fees and costs, and reserves to Defendant all challenges and defenses to that petition. (Yousef Decl., Ex. B.) A fee award to a prevailing plaintiff is mandatory under either statute the parties invoke. (Civ. Code, §§ 1780, subd. (e), 1794, subd. (d).)

II. Hourly Rates

Defendant disputes the requested rates of \$500, \$550, and \$600 per hour on two grounds. First, Defendant argues that counsel took the case on contingency and offered no evidence that these are the rates private attorneys charge for noncontingent litigation of the same type, so Plaintiff failed to carry its burden. (Opp., at p. 4:10-14.) Second, Defendant argues that lemon law matters are not complex and do not command premium rates, and asks the Court to apply a blended rate of \$350 per hour. (Opp., at pp. 4:15-5:24.)

Ketchum describes the reasonable hourly rate as “the hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133 (Ketchum).) However, “[t]he contingency adjustment may be made at the lodestar phase of the court’s calculation or by applying a multiplier to the noncontingency lodestar calculation (but not both).” (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 395.) Because lemon law cases are typically brought on a contingency basis, the Court considers that factor in fixing the reasonable hourly rate.

Here, Plaintiff offers two kinds of evidence. The first is the United States Consumer Law Attorney Fee Survey Report for 2017-2018, which reports a median rate of \$569 per hour for vehicle cases in the Los Angeles, Long Beach, and Anaheim areas. (Yousef Decl., ¶ 17, Ex. D, at p. 228.) The same report gives an average attorney hourly rate of \$281 for one to three years practicing consumer law and \$310 for three to five years. (Yousef Decl., Ex. D, at p. 229.) The second is the three noticed orders. The first approved this firm’s attorney work at \$500 per hour, the second approved rates between \$450 and \$600 per hour on an unopposed motion, and the third found \$600 per hour reasonable for Goolsby. (RJN, Exs. A-C.) The hourly rates a firm has sought and been

awarded in other litigation are relevant to the showing. (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1005-1006.) This Court is not, however, bound to follow them.

The record establishes the experience of one of the three attorneys who billed to this matter. Yousef was admitted to the California State Bar in September 2023 and has practiced plaintiff's side civil litigation since 2022. (Yousef Decl., ¶ 13.) The declaration describes Goolsby as a senior litigation attorney whose practice is concentrated in breach of warranty, consumer protection, and fraud claims against automobile manufacturers, and it gives neither an admission date nor a number of years in practice. (Ibid.) While the Motion describes Mittleman as a prelitigation attorney with more than ten years of civil litigation experience and cites the declaration for the description, the body of the declaration says nothing about Mittleman. (Mot., at p. 5:17-19.) A brief is not evidence of an attorney's experience.

Ketchum states that "a more skillful and experienced attorney will command a higher hourly rate." (Ketchum, *supra*, 24 Cal.4th at pp. 1138-1139.) A rate that varies by attorney therefore depends on a showing about the attorney, and this record makes one for Yousef alone. The noticed orders fixed rates for these timekeepers on records not before this Court, including \$600 per hour for Goolsby. (RJN, Ex. C, at p. 3.) An order entered on another record does not establish an attorney's experience, and the Court fixes each rate on the showing made here.

Three years since admission, or four in practice, places Yousef below the median Plaintiff's survey reports for this market, and the record does not support the requested \$500. The record says less about Goolsby and Mittleman than it says about Yousef. Accordingly, the Court applies a blended rate of \$450 for each of the three attorneys.

Defendant's rate challenge addresses the attorney rates alone. (Opp., at pp. 4:9-5:24.) Defendant does not contest the rates billed by the paralegals, case managers, and administrative staff, and the Court applies those rates as requested.

III. Hours Reasonably Incurred

A. Communications

Defendant argues that the invoice is padded with vague entries for client communications and asks the Court to reduce the whole invoice by twenty percent. (Opp., at p. 2:11-25.) Defendant separately asks the Court to strike thirteen entries for internal correspondence. (Opp., at pp. 2:26-3:10.)

Exhibit C contains 164 entries. Fifty-two of them have had their descriptions redacted. Each states a category, "Email to/from Client," "Call to/from Client," or "Email in/out," and nothing more. (Yousef Decl., Ex. C.) Those fifty-two entries total 6.8 hours, and at the rates the Court has approved they come to \$1,945.00. Case manager Nikolas Mancera billed twenty-three of them in 0.1-hour increments between May 16 and August 14, 2025, Yousef billed fifteen, and case manager Caleth Ibarra billed fourteen.

Communicating with a client is inherent in the representation. Counsel states that the firm audited the billing records to remove entries that may be privileged. (Mot., at pp. 9:25-10:1.) The subject of a communication between lawyer and client is ordinarily privileged, and a fee applicant who withholds that subject does not forfeit the time. Exhibit C still shows the nature of the work, the timekeeper who handled it, the date, and the increment billed. The representation began with a demand in May 2025 and ended in settlement twelve months later. Fifty-two communications with one client over that period is not necessarily an excessive number, twenty-three of them precede the filing of this action and cluster around the prelitigation demand, and forty-nine of the fifty-two were billed in increments of 0.2 hours or less. (Yousef Decl., Ex. C.) Mancera billed his twenty-three entries at \$150 per hour, the lowest rate charged on this matter. (Yousef Decl., Ex. C.) The Court declines to reduce these entries.

The internal-correspondence entries are similarly redacted showing only "Internal Correspondence" in the description. (Yousef Decl., Ex. C [entries dated 5/20/25 (two entries), 6/25/25, 6/27/25, 8/18/25 (two entries), 8/27/25, 9/17/25, 9/22/25, 11/13/25, 2/3/26, 6/9/26, and 6/10/26].) Defendant identifies thirteen of these entries which total 1.7 hours and, at the approved rates, \$389.00. Defendant argues that internal communications are unnecessary and that these entries reflect the overstaffing of a case with ten billers. (Opp., at pp. 2:26-3:10.) Five timekeepers billed the thirteen entries, and one of the five is an attorney. Mancera billed six of them at \$150 per hour and Ibarra two at \$200. (Yousef Decl., Ex. C.) Three of the ten timekeepers on this matter are attorneys, and the remaining seven are paralegals, case managers, and administrative staff. (Reply, at pp. 2:25-3:2.) A structure that assigns routine work to non-attorneys requires the people performing it to coordinate,

and thirteen entries totaling 1.7 hours across the life of this matter reflect no more coordination than reasonably necessary. The Court declines to strike these entries.

B. Clerical Entries

Defendant identifies eight entries as clerical work that is not compensable at any rate and asks the Court to strike them. Defendant argues that the entries are also block billed, so that clerical and non-clerical work cannot be separated. (Opp., at p. 3:11-19, at p. 4:1-5.) The eight total 3.2 hours and \$780.00. (Yousef Decl., Ex. C.) Plaintiff responds that Defendant quotes fragments of multi-task entries, and sets out fuller descriptions of all eight. (Reply, at pp. 3:3-4:6.) The Reply describes the September 10, 2025 entry as a meeting with an attorney about filing strategy, and Exhibit C records a meeting with an administrative case manager. (Reply, at p. 3:12-13; Yousef Decl., Ex. C.) The Court rules on the entries as Exhibit C records them.

Six of the eight record case setup and calendaring, internal conferring, or assembly of a filing package. Non-attorney timekeepers billed all six at rates between \$200 and \$250 per hour. Three are calendaring entries: 0.2 hours on May 15, 2025 to set up the case file and assign tasks to support staff, 0.4 hours on February 12, 2026 to receive a minute order and update calendar dates and deadlines, and 0.8 hours on April 9, 2026 to read an attorney email about the case management conference and calendar the trial and final status conference dates. (Yousef Decl., Ex. C.) A case manager billed 0.1 hours on January 14, 2026 and 0.2 hours on March 10, 2026, each entry recording review of the file during a calendar meeting with two other timekeepers. (Ibid.) The sixth, 0.5 hours on September 10, 2025, records a meeting with a case manager about the Complaint and revision of the package for filing and service. (Ibid.) Case setup, docketing and calendaring, and assembling a filing package are office overhead rather than legal services. An entry recording that a timekeeper reviewed the file during an internal meeting does not show what was done or why it was needed. The Court strikes these six entries, a reduction of 2.2 hours and \$530.00.

The entry dated December 8, 2025 records drafting, filing, and serving the case management conference statement, updating the calendar, and tasking discovery preparation. (Ibid.) Drafting a case management conference statement is a paralegal task, and the paralegal who performed it billed at \$250 per hour, below what an attorney would have charged. The entry also

contains a calendaring component the Court has held non-compensable, and it assigns one figure to the whole. Where entries are block billed so that the components cannot be separated, the Court may assign “a reasonable percentage to the entries, or simply cast them aside.” (Bell v. Vista Unified School Dist. (2000) 82 Cal.App.4th 672, 689.) The compensable work predominates, and the Court reduces the entry by twenty percent, a reduction of 0.1 hours and \$25.00.

The February 3, 2026 entry records file review in preparation for propounding discovery and correspondence with the litigation team. (Ibid.) Preparing written discovery is a paralegal task, and the Court has declined to strike the time counsel spent conferring internally. Every component of the entry is compensable, and the Court allows it in full.

C. Fee Motion

Defendant asks the Court to deny all time spent on this Motion, the 4.6 hours already billed and the \$3,000 in anticipated fees, on the ground that Plaintiff’s counsel refused to produce billing records before filing. (Opp., at pp. 8:20-9:10.) A statutory fee award ordinarily includes, “absent circumstances rendering the award unjust,” the hours “necessary to establish and defend the fee claim.” (Serrano v. Unruh (1982) 32 Cal.3d 621, 639 (Serrano).) Defendant’s position is that the refusal to produce billing records renders an award for this Motion unjust.

The federal order Defendant relies on denied all fees for a fee motion because counsel there had not satisfied a local rule requiring a good faith conference before filing. (Lee Decl. ISO Opp., Ex. B, at p. 2.) No comparable rule conditions a fee motion in this court. Plaintiff’s counsel offered to resolve fees and costs for \$20,000 in lieu of a motion. (Lee Decl. ISO Mot. to Strike, Ex. A.) Counsel then gave Defendant a lodestar and expense figure of \$28,613.92 and asked whether Defendant had a counter. (Lee Decl. ISO Opp., Ex. A.) Defendant’s counsel answered that Defendant required the supporting documents to assess the demand, and wrote, “[G]iven your firm’s policy, please file your fee motion in both cases and TMS will respond accordingly, if you’re still unwilling to share documents.” (Ibid.) Defendant made no counter. A refusal to produce billing records outside a noticed motion is not a circumstance that makes this award unjust. The Court declines to strike the 4.6 hours billed to prepare the Motion, its supporting declaration and exhibits, and the memorandum of costs. (Yousef Decl., Ex. C [the four drafting entries

dated 6/18/26, 6/19/26, 6/22/26, and 6/23/26].)

The Motion seeks \$3,000 for reviewing the Opposition, preparing the Reply, and appearing at the hearing, and asks that the figure be enhanced to \$3,900. (Mot., at p. ii.) The Motion states a lump sum, and no declaration allocates hours among the three tasks. Plaintiff states in the Reply that the estimate has proved conservative, because the Motion to Strike Costs drew a further opposition, and that Plaintiff seeks no more than the \$3,000. (Reply, at p. 7:7-16.)

The hours “necessary to establish and defend the fee claim” are not all spent when the moving papers are filed. (Serrano, *supra*, 32 Cal.3d at p. 639.) A prevailing buyer who waited until the last of them was spent would have to bring a second motion to recover the cost of the first, and neither statute the parties invoke requires that. One hour is reasonable to read the Opposition, two to prepare the Reply, and one to appear at a hearing. The Court allows 4.0 hours at \$450 per hour, for \$1,800.00.

D. Lodestar

The rate adjustments reduce the request by \$1,730.00: \$405.00 for Goolsby's 2.7 hours, \$815.00 for Yousef's 16.3 hours, and \$510.00 for Mittleman's 5.1 hours. The Court's reductions to the billed time total a further \$555.00: \$530.00 for the six clerical entries and \$25.00 for the block-billed entry. Subtracted from the requested lodestar of \$16,133.00, those reductions leave \$13,848.00 for 40.5 hours, 38.7 of them billed and 1.8 billed at no charge. Adding the \$1,800.00 allowed for the four hours remaining on this Motion, the lodestar is \$15,648.00 for 44.5 hours.

IV. Multiplier

Plaintiff asks the Court to enhance the lodestar by 1.3, citing the contingent nature of the representation, the delay in payment, the result obtained, and the technical subject matter. (Mot., at pp. 13-14.)

A trial court may award a lodestar multiplier under Civil Code section 1794, subdivision (d). (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 820.) Relevant multiplier factors include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of

the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Ketchum, supra, 24 Cal.4th at p. 1132.) “[W]hen determining the appropriate enhancement, a trial court should not consider these factors to the extent they are already encompassed within the lodestar.” (Id. at p. 1138.)

Here, the case is not unusually complex and is typical of the matters this firm’s consumer warranty practice handles. (Yousef Decl., ¶ 13.) The risk counsel bore was the ordinary risk of a warranty claim that settled before trial without motion practice. (Yousef Decl., Exs. B, C.) The Court has already reflected the contingent nature of the work in the hourly rate. The Court declines to award a multiplier.

V. Costs

Plaintiff requested \$1,636.90 in costs and expenses in the Motion and filed a verified Memorandum of Costs claiming \$1,507.96 the same day. (Mot., at p. ii; Memorandum of Costs, at p. 1.) Defendant’s Motion to Strike Costs challenges three line items and asks the Court to award \$635.00. (Mot. to Strike, at pp. 1, 3.) A prevailing party claims prejudgment costs by verified memorandum, and an opposing party contests them by motion to strike or tax. (Code Civ. Proc., § 1034, subd. (a); Cal. Rules of Court, rule 3.1700(a)(1), (b)(1).) The Court fixes costs on the memorandum.

A prevailing party is entitled to costs as a matter of right. (Code Civ. Proc., § 1032, subd. (b).) “If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. ‘On the other hand, if items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.’” (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1266, quoting Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.) Allowable costs must be “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “reasonable in amount.” (Code Civ. Proc., § 1033.5, subd. (c)(2), (3).) Items the statute does not mention “may be allowed or denied in the court’s discretion.” (Id., subd. (c)(4).)

A. The Memorandum’s Total

Defendant argues that the costs claimed on the MC-010 summary add up to \$1,447.96 while the total stated on the same page is \$1,507.96, and that “[t]he incorrect accounting alone suffices to deny the requested costs altogether.” (Mot. to Strike, at p. 1.) Line 1 of the summary displays \$435.00. (Memorandum of Costs, at p. 1.) The worksheet filed with it divides Line 1 into \$435.00 for the summons and complaint and \$60.00 for the motion for attorney fees, a subtotal of \$495.00. (Memorandum of Costs, Worksheet, Line 1.) The six worksheet subtotals of \$495.00, \$150.00, \$51.63, \$46.00, \$194.14, and \$571.19 add up to to \$1,507.96.

The summary’s Line 1 field was not updated after the \$60.00 filing fee was added to the worksheet. The worksheet is part of the verified memorandum, and a variance between a summary field and its worksheet is not a ground to strike the memorandum. Defendant identifies no authority holding otherwise. The Court overrules the objection.

The Motion requests \$1,636.90, which exceeds the memorandum by \$128.94. (Mot., at p. ii.) The largest single item behind that difference is a \$250.00 entry dated May 15, 2025, described only as “Admin Fee,” recorded five days before counsel sent the prelitigation demand and more than four months before Plaintiff filed this action. (Memorandum of Costs.) An entry described only as an administrative fee records office overhead. The Court awards nothing not included in the memorandum.

B. Filing Fees

Defendant argues that the filing fee incurred with this motion “should not be awarded as the instant fee litigation was entirely unnecessary but for Plaintiff’s counsel’s unreasonable refusal to negotiate fees informally.” (Mot. to Strike, at p. 2.) Filing and motion fees are allowable as a matter of right. (Code Civ. Proc., § 1033.5, subd. (a)(1).) The subdivision states no condition. The Court has declined to strike the time counsel spent on the fee motion, and it allows the fee paid to file that motion for the same reason. The objection is overruled.

C. Electronic Filing

Defendant contends that the \$46.00 claimed on Line 14 and the \$194.14 claimed on Line 15 are unaccounted for, that the memorandum’s totals do not match the invoices, and that four charges to file a single notice of settlement

are duplicative. (Mot. to Strike, at pp. 1-2.)

Fees for the electronic filing or service of documents through an electronic filing service provider are allowable as a matter of right where a court requires electronic filing, and this Court requires it of represented parties in non-complex unlimited civil cases. (Code Civ. Proc., § 1033.5, subd. (a)(14); Cal. Rules of Court, rule 2.253(b); L.A. Super. Ct., First Amended General Order No. 2019-GEN-014-00.) Code of Civil Procedure section 1033.5, subdivision (a)(15) previously authorized fees for hosting electronic documents, but by its own terms it became “inoperative on January 1, 2022.” (Code Civ. Proc., § 1033.5, subd. (a)(15).) Hosting fees are therefore allowable only in the Court’s discretion.

Here, the memorandum attaches eight electronic filing service provider invoices totaling \$815.71. (Memorandum of Costs.) Three amounts within them are claimed elsewhere on the memorandum: \$435.00 for the complaint on Line 1a, \$150.00 for jury fees on Line 2, and \$51.63 for service of process on Line 5. The remaining \$179.08 is made up of electronic filing charges, court technology access fees, disbursement administration charges, and the convenience fee assessed on each transaction. (Ibid.) The remainder is more than three times the \$46.00 claimed on Line 14.

Defendant separately objects that four invoices bill for filing a single notice of settlement: \$18.58 and \$18.58 dated May 26, 2026, and \$24.53 and \$24.53 dated May 27, 2026. (Ibid.) The billing records show a notice drafted and filed on May 22, 2026 and a revised notice refiled on May 26, 2026, which explains two of the four transactions. (Yousef Decl., Ex. C [entries dated 5/22/26 and 5/26/26].) Setting the other two aside still leaves \$135.97 documented against a \$46.00 claim, so the objection does not change what Line 14 recovers.

Line 15 claims \$194.14 for hosting electronic documents, and none of the eight invoices bills for hosting. (Memorandum of Costs.) Plaintiff’s Opposition describes the same invoices as reflecting “court-technology-access fees, eFiling charges, disbursement-administration charges, and payment-processing charges,” and rests the claim for both lines on subdivision (a)(14). (Opp. to Mot. to Strike, at p. 5.) The General Order requires represented parties to file electronically and says nothing about hosting.

Defendant’s motion put the hosting fees in issue, and the burden of

proving the item then fell to Plaintiff. (Jones v. Dumrichob, supra, 63 Cal.App.4th at p. 1266.) Plaintiff identifies no hosting charge and makes no showing that hosting was reasonably necessary to the conduct of this litigation. The Court allows \$46.00 on Line 14 and strikes the \$194.14 claimed on Line 15.

D. Discretionary Items

Defendant objects that Plaintiff provides no documentation for the \$571.19 claimed on Line 16, and that mediation is not a recoverable court cost. (Mot. to Strike, at p. 3.) The Memorandum of Costs attaches SMART ADR's invoice and receipt numbered 20260423P.R1 for \$562.50, and a certified mail charge of \$8.69 for the demand letter counsel sent on May 20, 2025. Those two figures total \$571.19, the amount claimed. The documentation objection fails on the record.

Mediation appears neither among the allowable items in subdivision (a) nor among the disallowed items in subdivision (b), so it is allowable in the Court's discretion. (Code Civ. Proc., § 1033.5, subd. (c)(4).) Defendant argues that a discretionary item "must still be 'court' costs—which a 'mediation' service by definition is not." (Mot. to Strike, at p. 3.) Subdivision (c)(4) governs "[i]tems not mentioned in this section," and it does not confine discretionary items to court costs. The mediation produced the settlement that ended this action, and it was therefore reasonably necessary to the conduct of the litigation. (Id., subd. (c)(2).) The certified mail charge for the statutory prelitigation demand is modest and necessary on the same measure. The Court allows \$571.19.

Costs are awarded in the reduced amount of \$1,313.82.

CONCLUSION

Plaintiff's Motion for Attorney Fees, Costs, and Expenses is granted in the reduced amount of \$15,648.00 in attorney fees. Defendant's Motion to Strike Costs is granted in part and denied in part, and costs are awarded in the reduced amount of \$1,313.82.